

Relevance: any tendency to make a material fact **more probable or less probable** than would be the case without the evidence. All relevant evidence is admissible, **unless** the Court makes a discretionary determination that the presumed **value** of the evidence is **substantially outweighed** by pragmatic considerations: Misleading, Prejudice, Waste of time, Confusion, Undue Delay, Cumulative (balance of relevance with pragmatic considerations and encouraging beneficial out of court conduct). Admissibility depends on **purpose**, and is subject to a **limiting instruction** if admissible for one purpose but not another.

Evidence that a person has/doesn't have **liability insurance** is inadmissible to prove fault, but may be admissible to prove **ownership/control** (if controverted) or **impeachment** of a witness.

Subsequent Remedial Measures are inadmissible to prove negligence, culpable conduct, product defect, need for a warning, to encourage remedial conduct. But may be admissible to show **ownership/control**, **feasibility** of safer conditions if controverted. In New York, SRM are admissible in a **products liability action based on strict liability for a manufacturing defect**.

If there is a disputed claim, then **evidence of settlements/offers to settle/statements** made in settlement negotiations are inadmissible to prove liability but admissible to **impeach** a witness for bias.

Offers to pay Hospital or Medical Expenses are inadmissible to prove liability (encourage charity), but statements made in connection with an offer to pay medical expenses are admissible (**severance**).

Offers to **plead guilty**, withdrawn guilty pleas (admissible in NY), pleas of nolo contendere, and statements of fact with regard to these are **inadmissible** against a Defendant in a pending criminal litigation. Guilty pleas that are not withdrawn are admissible against Defendant based on same facts in federal court and New York.

Impeachment is the process of trying to show a witness should not be believed. **Bias** means there is some **relationship** between witness and party that could cause the witness to lie.

Character Evidence refers to a person's general propensity or disposition. Identify the **purpose**: if offered to prove the person has a "**propensity**" to act in a certain way; **veracity**: if evidence of a witness' character for truthfulness is offered to impeach; **non-propensity purpose**: if evidence of a person's prior bad act is offered for some purpose other than proving propensity. **Trait as an element**: if evidence of a person's character trait is offered because the trait is an essential element of a claim or defense.

As a general rule, character evidence is not admissible to prove propensity ("conduct in conformity"), **except** the **Defendant may introduce** evidence of his own good character for a relevant trait (reputation or opinion federally, reputation only in New York). No specific acts. If so, **Prosecution may rebut** with evidence of D's bad character for the same trait by **calling its own witness** to testify to relevant bad character (Reputation & Opinion federally, Reputation only in New York), or by **cross-examining Defendant's character witnesses** by questioning their knowledge of Defendant's specific acts relevant to the trait. **For opinion witnesses: "Did you know"**. **For reputation witnesses, "Have you heard?"**. To test knowledge only, not prove fact. **Good faith requirement**: Even though the prosecution is not

proving the specific act, it must have a **good faith basis** to believe that the specific act took place. In **New York**, the prosecution may also rebut the defendant's good character evidence by proving that the Defendant has been **convicted of a crime that reflects adversely on the trait at issue**.

Criminal Defendant may offer evidence of the victim's violent character to prove that the victim was the first aggressor by reputation or opinion. The prosecution may rebut in two different ways, by evidence of: **victim's good character** (for that trait) or **defendant's bad character** for that trait. In **New York**, evidence of the victim's character is **inadmissible** to prove victim was the first aggressor. Special Rule federal and New York: **Defendant may offer evidence of his own knowledge of the victim's bad character for violence for the purpose of showing that he reasonably believed in the need to use self defense** (belief, not propensity evidence), any form is allowed (reputation, opinion, special acts).

Rape shield – in a case involving alleged sexual misconduct, the defendant can't introduce evidence of the victim's **reputation for promiscuity** (low probative value and may discourage victims coming forward) or **prior sexual conduct** (also in civil cases) **except** victim's sexual activity with Defendant if the **defense is consent**; victim's sexual activity with others to show someone other than Defendant was the **source of physical evidence**, evidence required by **Due process** rights. **New York**: evidence of the victim's conviction for **prostitution** within the past three years.

The General rule for propensity evidence is that it is inadmissible to prove conduct on a particular occasion, but **habit of a person (or routine of a business organization) is admissible to infer how the person (or business) acted on the occasion at issue in litigation**. Habit is repetitive response to a particular set of circumstances: frequent and particular ("always" "invariably" "automatically" "instinctively"). **Business routine**: the regular practice of an organization is admissible to prove conduct on a particular occasion. In **New York**, habit re: business, trade, profession is admissible; evidence re: personal habit on the issue of **due care** in negligence is **inadmissible**; evidence re: personal habit in the **use of a product is admissible**.

A **defendant's other crimes or specific bad acts are inadmissible** during the prosecution's case in chief to prove propensity, but, Defendant's other crimes/bad acts may be admissible to show something other than propensity, e.g.: **motive, intent, mistake/accident (absence of), identity, or common plan**. If MIMIC is satisfied, prosecution may use other crimes as evidence in case in chief and is not dependent on D's introduction of favorable character evidence. Proof by: **conviction or evidence that tends to prove the bad act occurred**. Burden of proof: federal "**sufficiency**" standard: prosecution must produce sufficient evidence for a reasonable jury to conclude that D committed the prior act by a **preponderance of the evidence**. New York "**identity**": prosecution must produce clear & convincing evidence that **D committed the prior act to the judge**. Then the court must balance (probative v. prejudice), issue a limit instruction (re: purpose of MIMIC evidence); and prosecution must give pretrial notice of intent (upon D's request). MIMIC can be used in civil cases.

In any case alleging sexual assault/child molestation, the **prosecution may offer evidence of the Defendant's prior sexual assaults to prove propensity to commit sexual assault**. In **New York**, the prosecution may not introduce evidence of prior bad acts to prove propensity.

To be relevant evidence **Similar Occurrences** must relate to some **time, event, or person** involved in the present litigation otherwise it is inadmissible, **except** other similar occurrences may be admissible even if they relate to time, event or person involving another. (1) **Habit** – relates to different time than instant litigation, but might be relevant (2) Evidence of P's accident history (generally inadmissible), except P's prior acts might be admissible to show **fraudulent scheme or plan or causation**. (3) General rule is that other accidents are inadmissible, however, other accidents are involving **same instrumentality/condition & occurring under substantially similar circumstances** may be admitted to show existence of dangerous **condition, causation, to show prior notice** to Defendant. The standard for admitting experiments and tests is the same, there must be [] between the experiment and disputed fact (4) intent in issue: prior similar occurrences may be relevant to draw an **inference of intent** from a person's prior conduct. E.g., Other minority job applicants in a discrimination in hiring case. (5) The **selling price of comparable property** (type, location, time period) is admissible to show value of property at issue. (6) **Industrial custom** how others in the same trade/industry acted in the recent past may be admitted as to show how a party in the instant case should have acted to show standard of care.

Judicial Notice: Recognition of a fact as true w/o formal presentation of evidence. Disputable fact: matters of **common knowledge w/I the court's territorial jurisdiction** (e.g., in NY that Times Square is at intersection & Broadway); or matters capable of **easy verification** by resort to unquestionable sources (e.g., Calender, that 11/22/64 was a Sunday). Timing: at any time, including upon appeal. Effect: conclusive in civil cases, but not in criminal cases.

Documentary Evidence: *Exam tip Authentication, best evidence, and hearsay. **Authentication:** the party seeking to introduce an exhibit must introduce **sufficient evidence** for a reasonable juror to conclude that the item is what the party claims it to be. If relevance of a writing depends on source or authorship, party offering **must prove the source** to authenticate: testimony by a witness with personal knowledge, proof of author's handwriting (lay opinion by one who knows; expert opinion/comparison (qualified, compare with a known sample); jury comparison). **Ancient documents rule:** authenticity may be inferred if at least 20 y/o (NY 30 y/o) is facially free of suspicion (no erasures) and is found where it would be expected. The older a document is, the harder it is to find someone with personal knowledge. **Solicited Reply Doctrine:** Received in response to a prior communication to the alleged offer (e.g., mail a contract).

Self-authenticating (no foundation testimony needed): official publications (gov't pamphlets, tax return forms), certified copies of public documents on file in public officers (deeds, mortgages), newspapers/periodicals (e.g., Wall Street journal to show closing price), trade inscriptions/labels, acknowledged (notarized) document, commercial paper (check/promissory note), certified business records offered under business records hearsay exception (certified by someone w/I business who knows how the records are regularly made + and that these records made in the regular way, at/about the time of the event recorded – no witness necessary).

Authentication of photographs and recording: If demonstrative (illustrative) – witness authenticates by personal knowledge that it is a **"fair & accurate representation"**; or if "silent witness", is the evidence

itself, (surveillance) - Camera properly **installed & working**; film properly **removed & developed**, & film has not been tampered with (**chain of custody**).

Best evidence rule (original writings rule): **if a party seeks to prove the contents of a writing (documents, film, xrays, photos), the party must (a) produce the writing, or (b) provide an acceptable excuse for its absence.** If the court finds the excuse acceptable, the party may then use secondary evidence to prove the contents. **Applies:** only when party seeks to prove contents of writing (legally operative document, witness is testifying from facts she learned from reading about them from writing).

Original: writing itself, any counterpart intended to have the same effect (film/print from the negative/computer printout); a duplicate: any counterpart produced by any mechanical means that accurately produced the original (carbon copy, copy) admissible to the same extent as an original unless genuine question as to authenticity of duplicate (forgery claim). **New York duplicates acceptable substitutes only if duplicates are made in the regular course of business** (excludes duplicates made for litigation, including as part of discovery). **Not an original:** handwritten copies.

Nonproduction of the original is **excused** if: the original is **lost** and cannot be found with due diligence, or has been **destroyed** without bad faith, **cannot be obtained with legal process** (beyond subpoena power of the court). If the Court is persuaded by a preponderance of the evidence, then secondary evidence (oral testimony, handwritten copy) is admissible. Escape from BER: (1) **voluminous records** – summaries/charts valid provided originals meet evidentiary requirements (2) **certified copies of public records** (3) **collateral documents** (unimportant to issues of the case, subject to the Court's discretion).

Real evidence: actual, physical evidence displayed to factfinder. **Authentication rule:** party must introduce sufficient evidence that the item is what the party claims it to be. Process of authentication (laying a foundation): **personal knowledge** or **chain of custody**. Chain of custody need be "**substantially unbroken**", not perfect. If the condition of the item is relevant, it must be shown at trial to be in **substantially the same condition** (not tampered with) – e.g., in firearms (want to show it is operable)

Testimonial Evidence: To be competent to testify, the witness must have **personal knowledge** and take an **oath** (demonstrate an **understanding** of the obligation to tell the truth and **promise** to tell the truth). In **New York**, a child may testify if **understands** the obligation to tell the truth and **promises** to tell the truth. All witnesses in civil cases must take an oath, in criminal cases, a child under 9 who cannot understand the oath may give unsworn testimony but defendant cannot be convicted based solely on unsworn testimony.

Under federal rules, there is **no dead man's statute** (witness is not incompetent just because she may have an interest in the outcome of the litigation. Dead Man's statutes provide **in a civil action, an interested** (outcome of the case will have a legally binding effect on the person's rights or obligations) **party, may not testify, against a dead party, about communications with the dead party, unless** decedent's representative does **not object**, or decedent's **representative testifies** about the transaction, or **decedent's testimony is introduced**. **New York Dead Man's statute:** supra, except in an accident based on negligence, the surviving party may testify about the facts of the accident but cannot testify about conversations with the decedent.

A question is leading if the form of the questions suggests the answer. Generally are not allowed on direct, except **preliminary** introductory matters, **youthful/forgetful witnesses**; **hostile** witnesses; **adverse** party or someone under the control of an adverse party. Permitted on cross examination.

Present recollection refreshed: **As a general rule, a witness may not read from a prepared memorandum, but must testify on the basis of current recollection.** But, if a witness forgets something he once knew, he may be shown a writing (or anything else) to **jog** his memory. However, a writing **may be read** to the jury as a “past recollection recorded” if the witness once had **personal knowledge**, the witness **now forgets** and showing the writing to the witness **fails to jog** the witness’ memory, the writing was either made **by** the witness or *adopted by* the witness, the writing was made when the **event was fresh** in the witness’ memory, and the witness can attest that, when made, the writing was **accurate**. If foundation for a recorded document is satisfied, the witness **may read** the document to the jury, but may not introduce it into evidence. The **opposing party may introduce** as an exhibit. In **New York**, the party using the recorded recollection may also introduce to the jury/exhibit.

As a rule, lay opinion testimony is admissible if it is **rationally based** on the witness’ perception and **helpful** to the jury (sobriety, emotions, speed, handwriting, smells). An expert may testify as to opinion as an expert only if the witness is **qualified**, testimony is about **subject matter** where scientific, technical, or specialized **knowledge** will be helpful to the jury, the opinion has a **proper basis** and the opinion is **reliable**. The opinion must be based upon a **reasonable degree of probability or reasonable certainty** and must be based on: the expert’s **personal knowledge** (opinion), evidence already **in the trial record**, or facts outside the record if **reasonably relied** upon by experts in the field. If an expert relies on facts outside the record, he may **generally discuss the bases** of the opinion, but **cannot disclose** inadmissible facts to jury. **Opponent**, however, **can** disclose underlying bases on cross examination.

To be **admissible**, expert opinion must be **sufficiently reliable**: use of **reliable methods** and **reliable application** of those methods to particular case facts. Federal rule for scientific evidence (Daubert) – court examines reliability by asking: has **methodology been tested**, are there **known rates of error**, has the methodology been **subject to peer review**, has methodology been **generally accepted**. New York uses **Frye** standard: “**has methodology been generally accepted by the relevant professional community.**” Opinion testimony (lay or expert) is admissible even on the ultimate issue in the case, but in a criminal case an expert cannot testify that the Defendant **did /not have the required mental state**.

If a party can establish that a **treaty is a reliable authority**, then the treatise may be used on direct or cross of an expert and may be read to the jury as **substantive evidence**, but the treatise itself **is not introduced** as an exhibit. To establish authoritativeness: **expert** (your own/opponent) **testifies** treatise is authoritative, , **judicial notice**. In New York, on direct, a treatise may only be used for the purpose of showing the **basis** of expert’s testimony, **not as substantive evidence**. On cross, only to **impeach** (not substantive) the opponent’s expert’s credibility, only if opponent’s expert either relied on the treatise in developing her own opinion or acknowledged that it is a reliable authority.

Cross examination is a right. If a witness testifies but then cannot be cross-examined, the witness' direct testimony will be struck. Proper subject matter of cross examination includes: matters within the **scope of direct examination** and matters that affect a witness' **credibility**.

Whether a witness is **credible/believable** rests on **perception, memory and honesty**. **Impeachment** is the process of demonstrating that a witness is not credible. **Rehabilitation** is the process of trying to **repair a witness' credibility** after the witness has been impeached. **Methods: Prior inconsistent statements; bias interest or motive to misrepresent; sensory deficiencies; reputation or opinion; criminal convictions; bad acts (without conviction); contradiction.**

A **prior inconsistent statement** is a prior statement (oral/written) materially inconsistent with the witness' trial testimony. A prior inconsistent statement may be used to **impeach** a witness, but may be admitted as **substantive evidence** if made orally and under **oath**, at a **formal hearing/proceeding/trial** or a deposition. In **New York**, only to impeach.

A witness who is being impeached with a prior inconsistent statement must be given an opportunity to explain or deny the prior inconsistent statement. Timing/**New York**: while still on the stand; **Federal**: may be proven by **extrinsic evidence** if witness is given an opportunity to return to the stand and explain. Except, if the witness is the opposing party, there is **no need to give the witness/party an opportunity to explain the prior inconsistent statement** (also statement admissible as **admission**).

Bias: always may be proven by **extrinsic evidence**. Generally, a witness should be **confronted** with alleged bias before it is proven by extrinsic evidence.

Sensory Deficiencies: anything that could affect a witness' perception or memory: intrinsic confrontation is not required, **extrinsic evidence is not allowed**.

Reputation/Opinion: Veracity is the character trait of being truthful. **A party may impeach a witness by calling another witness to testify to the target witness' bad character for veracity.** In Federal court, by **reputation or opinion**; in **New York** by **reputation**. Specific acts are not allowed. Any witness who has testified may be impeached by this method and **extrinsic evidence is allowed**.

Criminal convictions: In New York, a witness may be impeached with a conviction for any crime. Special rule: when the witness is the **criminal defendant**, the court must conduct a hearing to balance the **probative value of the conviction** (re: veracity) against the risk of unfair **prejudice "Sandoval Hearing"**. **Federal rule**: to be admissible, a conviction (or release from prison, whichever is later) must be **within 10 years** of trial. Crimes of **dishonesty/false statement** are admissible (betrayal of trust). **Misdemeanors** are inadmissible; **felonies are admissible** if the probative value of the conviction re: veracity outweighs the risk of prejudice to a party. **Balance: seriousness/relation to trust and deception v. inflammatory nature** and **similarity** to currently charged offense. Conviction may be proved by intrinsic or extrinsic evidence, witness opportunity to explain is not required.

Bad acts: Federal rule – a witness may be asked about prior bad acts if those acts relate to **truthfulness** (need not be a crime). In **New York**, a witness may be asked about prior bad acts that show the witness'

moral turpitude. The cross-examiner must have a **good-faith basis** to believe the bad act occurred, it may only be proved by intrinsic evidence, but extrinsic evidence if bad act is relevant to some other purpose (e.g., bias).

Contradictions: A witness may be impeached by showing that she made a **mistake** or **lied** about any fact she testified to during direct examination. If contradiction is a collateral issue, impeachment intrinsic.

Impeachment: Federal rule – any party may impeach any witness. In **New York** (“**Voucher rule**”) by a calling a witness, a party vouches for that witness’ credibility so **ordinarily a party may not impeach its own witness except** with a prior inconsistent statement that was made **in writing and signed** by the witness or made in oral testimony under **oath**. But in criminal case, this exception may be used only if the witness’ current testimony is **affirmatively damaging** to party who called the witness (not “cloud on credibility”).

Rehabilitation: Generally a witness may be rehabilitated only after the witness’ credibility has been impeachment, otherwise “bolstering” and inadmissible. However, **a witness’ prior statement of identification is admissible** even if the witness’ credibility has not yet been attacked. Prior ID is admissible as substantive evidence. **New York** does not allow prior identification in **civil cases**. Warning: the statement of identification must be made by a **trial witness who is subject to cross-examination**.

Methods of rehabilitation: If a witness’ character for truthfulness has been attacked (impeachment 4-6), then the opposing party may introduce **corresponding evidence of the witness’ good character** for truthfulness, Federal by **reputation or opinion**; in **New York**, **reputation** only. No specific acts.

Prior consistent statements: A prior consistent statement may be used to rehabilitate if it is **consistent** with their witness’ trial testimony, the opposing party has suggested through impeachment that the witness has a **motive to lie**, and prior statement was made before the motive to lie arise. Substantive evidence under hearsay exception, but in **New York**, it may be admissible **only to rehabilitate**).

Testimonial privileges: In federal court, apply the federal rules of evidence. In federal **diversity** cases (**state law governs substantive claims**), apply federal rules of evidence but state law as to burdens of **proof/presumptions, dead man’s statutes, and privileges**. Federal privileges: attorney client; husband-wife; priest-penitent; psychotherapist-patient. Does not recognize doctor/patient. In **New York**: **doctor/patient; social worker/client; reporter/source**.

Attorney: Confidential communications between an attorney and client during the professional legal consultation are privileged unless the privilege is waived by the client or an exception applies. An attorney is: **member** of the bar, client **reasonably believes** is a member of the bar, and **representative** of the attorney. Client is **seeking** to become a client or **representative** of the client. The privilege only applies to communications, **not** to **underlying information** (facts), **preexisting documents**, or **physical evidence**. Client must **intend** confidentiality. **Joint client rule** – if 2+ clients with common interest consult the same attorney, their communications with counsel re: Common interests are privileged as to third parties, but if they later have a dispute with each other re: common interest, privilege does not apply as between them. **Primary purpose must be to get/give legal advice**.

Waiver: Client is the holder, client alone may waive by disclosure to third party. Privilege continues after attorney client relationship ends. **After death of client**, client's estate holds it and may waive it except: **future crime or fraud, client puts legal advice at issue or sues the attorney.**

Confidential communication/information acquired by the doctor (nurse, therapist, doctor's assistants, dentists, podiatrists, chiropractors) **from the patient for the purpose of diagnosis or treatment of a medical condition is privileged.** Covers communications or information acquired by Dr., so long as it is **confidential** and for the purpose of **medical treatment/diagnosis**. Vs. federal rules which cover only **psychotherapists** (professional certified to diagnose/treat mental/emotional illness).

Spousal privilege: confidential communications between spouses are privileged, so long as they are confidential, and may be waived only by both spouses, post marriage.

Spousal Immunity: in a **criminal case**, the prosecution cannot compel the Defendant's spouse to testify the defendant. This applies only to criminal cases, covers testimony against the spouse, witness and defendant must be currently married, and **may be waived by the witness spouse**. Does not apply to acts/communication in furtherance of a future crime or fraud (joint criminal activity) or communications re: acts destructive of the family unit (spousal/child abuse). **Inapplicable in New York.**

Hearsay: Absent an exception or exclusion, hearsay is admissible. Hearsay is an out of court statement (oral or written) **by a person** (declarant) **offered to prove the truth of the matter asserted** (since we can't cross examine). **Purpose is key** (if not truth, then not hearsay).

Nonhearsay

Impeachment: A prior inconsistent statement may be offered to show that the witness is an inconsistent person, without necessarily being offered to prove the truth of the prior statement (but if offered to prove truth, then hearsay). **Verbal Acts** (legally operative words): words with independent legal significance (when law attaches rights and obligations to certain words simply because they are said) then it is not hearsay (offer/repudiation/cancellation of a contract; effect of gift or bribe; act of perjury, criminal misrepresentation or defamation, creating rights/obligations). To show **effect on a person who heard or read the statement**: A statement that is relevant simply because someone heard it (or read it) is not hearsay (e.g., notice, motive for reasonableness). **Circumstantial evidence of speaker's state of mind**: a statement that unintentionally reveals something about the speaker's state of mind is not hearsay (insanity, consciousness of guilt, lack of knowledge).

Prior statements of trial witness: a **Witness' own prior statement, if offered to prove truth, is hearsay and inadmissible unless an exclusion applies.** Prior statements of witnesses that are excluded are: **prior statements of identification**; a **prior inconsistent statement** if made under oath and during a formal proceeding – but in New York, only to impeach); or a **prior consistent statement** if used to rebut accusation of motive/lie and made before motive to lie arose – in **New York, only to rehabilitate**.

Exceptions

Party Admissions: any statement made by a party is admissible if it is offered against the party.

Federal rules “exclusions” in NY “exceptions.” **Vicarious admissions** are statements by an agent/employee of a party admissible against the party principal if it concerns a matter **within the scope** of the agency employment and was made **during agency/employment** – but in **New York** it is admissible only if the agent/ee had **speaking authority**. **Vicarious admissions by co-conspirators:** a statement of one co-conspirator is admissible against other co-conspirators if the statement was made **during and in furtherance of the conspiracy** (but never to known cops).

Former testimony, forfeiture by wrongdoing, dying declarations and declarations against interest require that the declarant be **unavailable (privilege, absence from jurisdiction, illness or death, lack of memory, stubborn refusal to testify “PAILS”)**. In New York lack of memory and stubborn refusal do not count, but they do count Declarant **living 100+ miles** from courthouse or if Declarant is a **doctor**.

Former testimony: the declarant is **unavailable**, the prior statement was given in a **proceeding/deposition**, offered against a party who, on the prior occasion, had an **opportunity and similar motive to cross examine/** develop the testimony. The evidence must be **substantially similar** to its relevance in the prior proceeding/similar motive to cross-examine. But in **New York**, the former testimony by the now-unavailable witness must have been given at a **criminal trial**, a hearing on **felony complaint** or at conditional **deposition**, Same charge and defendant in current/former case. Former testimony from a suppression hearing is inadmissible against the defendant.

Forfeiture by wrongdoing: a party who intentionally and wrongfully makes a declarant unavailable cannot raise a hearsay objection to admission of the declarant’s out of court statements (includes engaging in/acquiescing in wrongdoing that was intended to and did procure unavailability of declarant as trial witness). By Preponderance of the evidence (**Federal**); Clear & convincing evidence (**New York**).

Statements against interest: declarant is **unavailable** and statement is against Defendant’s **pecuniary, proprietary or penal interest**. In criminal cases, statement against penal interest, when offered to exculpate defendant must be supported by **corroborating evidence**.

Dying declaration: Declarant is **unavailable**, statement was made under a **belief** of certain and impending death and the statement concerns the **cause/circumstances** of impending death. Federal: any civil case or criminal homicide; **New York, criminal homicide only**.

“Spontaneous exceptions” rely on spontaneity. **Unavailability is not required**.

Excited utterance is a statement that concerns a startling event and was made while the declarant was still under the stress caused by the event (suspends one’s capacity to fabricate). Factors: nature of the event; passage of time (the shorter, the more likely); verbal cues (“shouted” or “screamed”).

Present sense impression: the statement describes an event and is made while the event is occurring or immediately thereafter (seconds, not minutes) (contemporaneous, no time to fabricate). In New York, this requires **corroboration**.

Statement of then existing mental, emotional, or physical condition allows the admission of a contemporaneous statement concerning the declarant's then-existing physical condition or state of mind (emotions, mental feelings, intent/future plans, sensations, bodily health). It does not include a statement of **memory** or belief about a **past condition**. It does include statements of **future intent** to do something with a third person (unique knowledge). In **New York**: if a statement of a present physical condition is made to a **layperson** (not a doctor) the declarant must be **unavailable**. **If a statement of future intent is offered to prove the conduct of a third person, New York requires corroboration** (of connection between declarant and third person) and the declarant is **unavailable**.

Statement for the purpose of medical treatment or diagnosis: allows an admission of a statement made to **medical professional** (doctor, nurse, EMT) re: present symptoms, past symptoms, general cause of medical condition for the purpose of **treatment or diagnosis**, but not statements of fault or identity of wrongdoer (incentive for honesty to get good medical care). In **New York**, this does not apply to statements made for the purpose of obtaining **expert testimony at trial** and does not apply to statements re: **past symptoms** (but remember general cause of medication condition).

Business and Public records allows admission of records of a business, made in the regular course of business (germane/re: what business does) the business regularly keeps such records made **contemporaneously** (at/about time event recorded) and the contents consist of **information observed** by employees of a business or a statement that falls within some other **hearsay exception**.

Public records: **observations** by employees of the public agency, and **conclusions** by public employees **after an official investigation** (police officer's conclusion of fault re: accident report). **A police report cannot be used against a defendant in a criminal case**. In **New York**, **only observations**.

Foundations for business records: **Live testimony** (call knowledgeable witness who can testify to the elements of business records hearsay exception – custodian of the records; or **affidavit**: written certification under oath attesting to elements of business records hearsay exception). **New York qualification**: written certification only in civil cases and only for the business records of a non-party.

Hearsay and confrontation clause, in criminal cases, the 6th A requires that the defendant be confronted with witnesses against him. **Prosecution may not offer testimonial hearsay violating the defendant's right to cross examine the declarant**. Right to cross examine the defendant: already had a **chance** to examine the declaration (former testimony); Defendant **can cross examine** the declarant at trial (prior statement of trial witness); or **forefeiture** right through witness tampering (by wrongdoing).

Testimonial: **grand jury** testimony is testimonial. Statements in **response** to police interrogation is testimonial if the primary purpose of the questioning is to establish/ prove past events potentially **relevant to later criminal prosecution**. Non-testimonial if the primary purpose of the questioning is to enable police assistants to meet an **ongoing emergency** ("responding to a cry for help"). **Police reports are testimonial, business records not testimonial (but this is unsettled)**.

Hearsay declarants and impeachment: if hearsay is admitted, the opposing party may use any of the impeachment methods to attack the credibility of a hearsay declarant.

Procedural considerations: generally, civil cases by a preponderance of the evidence; in criminal cases is beyond a reasonable doubt. After all the evidence is in, the jury decides whether the burden of proof has been met for each element of charge, claim, defense.

Preliminary facts for the jury: the jury decides questions of **conditional relevance:** witness has personal knowledge, exhibit is authentic, or defendant is in fact the person who committed a prior bad act for MIMIC. The judge's role to ensure there sufficient evidence for a reasonable jury to conclude that the conditional fact is true.

The judge decides questions of admissibility: whether testimony is hearsay, communication is privileged, expert is qualified by a preponderance of the evidence and he may consider anything.